

25STCV19240 25STCV19240

County: los-angeles

Division: Civil Law and Motion

Department: 224

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Case Number: 25STCV19240 Hearing Date: June 29, 2026 Dept: 224

Ludden v. Modern Productions, LLC et al.,

TENTATIVE RULING

The OSC is CONTINUED to October 2, 2026, at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package by August 31, 2026 to allow the court time to review the filings.

The Court also sets an Order to Show Cause Re Sanctions Against Plaintiff's Counsel in the Amount of \$250 Pursuant to CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default Judgment for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

FACTS OF THE CASE:

Plaintiff Jennifer Ludden alleges causes of action against Defendants Modern Productions, LLC and Rebecca Nunez for breach of contract, breach of the implied covenant of good faith and fair dealing, and fraud. Plaintiff alleges that she worked for Defendants from approximately November 30, 2022 until approximately July 21, 2023 as COO. Plaintiff alleges that her employment ended after wrongful termination and harassment, including sexual harassment, by Rebecca Nunez, Modern Productions' CEO. Plaintiff alleges that on or about November 20, 2024, she and Defendants executed a Separation Agreement settling her employment-related claims. Under the Separation Agreement, Modern Productions was supposed to pay Plaintiff \$50,000.00. Plaintiff alleges payment was due by December 6, 2024, but Defendants failed to pay.

Plaintiff further alleges that on or about January 28, 2025, the parties executed an Addendum to the Separation Agreement. Under the Addendum, Modern Productions agreed to pay Plaintiff \$75,000.00 in six equal monthly installments of \$12,500.00 beginning March 15, 2025. The Addendum states that failure to pay an installment within three days of the applicable payment date constitutes a payment default, at which point the full separation payment becomes immediately due and payable. The Addendum also states that if Plaintiff is required to institute legal action to enforce payment, Plaintiff is entitled to reasonable and documented attorney's fees and costs incurred in the action, plus applicable interest.

Plaintiff alleges Defendants made one payment of \$12,500.00 on or about March 17 or March 18, 2025, but did not pay the remaining \$62,500.00. In the Complaint, Plaintiff prays for compensatory damages according to proof, prejudgment interest, reasonable attorney's fees, punitive damages, costs of suit, and other just and proper relief. Plaintiff is not, however, seeking punitive damages in the proposed default judgments. Plaintiff now seeks judgment against both Defendants for the unpaid

settlement balance, interest, attorney's fees, and costs.

PROOF OF SERVICE/DEFAULT: Defaults previously entered on 5/28/2026 as to both Defendants.

PRINCIPAL REQUESTED: \$ 62,500.00 per proposed judgment.

INTEREST: \$ 7,634.04 per proposed judgment.

ATTORNEY'S FEES: \$ 9,520.00 per proposed judgment.

COSTS: \$ 1,723.60 per proposed judgment.

TOTAL: \$ 81,377.64 per defendant.

ANALYSIS:

Entry of default is not void as the plaintiff did not file an amended complaint after default was entered, and neither defendant appeared before default was entered.

There is no pending motion to vacate default.

Plaintiff has dismissed DOES 1–50, the only parties against whom a default judgment is not sought.

Plaintiff used the JC Form CIV-100 to request court judgment twice. Item 2 of each CIV-100 is filled out. The declaration of nonmilitary status is completed for each defendant.

A memorandum of costs is verified on each CIV-100 form. The requested costs include clerk's filing fees, process server's fees, document images, and Westlaw. Note for Judge: The filing and service costs appear recoverable, but the Westlaw charge and document-image charge are somewhat questionable. The Court could reduce costs if it finds those items unsupported.

Plaintiff submitted proposed JUD-100 judgments, and declarations from Jennifer Ludden and Niki Akhaveissy in support of the requested judgment.

Plaintiff states a valid claim for breach of contract against Modern Productions, LLC. The Separation Agreement and Addendum show that Modern Productions agreed to make the settlement payments, and the claim for the unpaid settlement balance is supported by Plaintiff's declaration and the attached settlement documents.

The request for attorney's fees is supported. Counsel states that she spent over 12 hours and anticipates an additional 4 hours on the matter and charges \$595 per hour, for requested fees of \$9,520.00. This exceeds the amount that should be given in accordance with LASC Local Rule 3.214, but counsel does provide a declaration explaining the basis for the higher request. The declaration is too generic to justify awarding fees above the limits of LASC Local Rule 3.214, and does not constitute a billing statement. If Plaintiff does not submit more substantial evidence, the Court will abide by the limits in LASC Rule 3.214.

PROBLEMS:

The CIV-100 forms were rejected by the clerk because item 1(b) on each is left blank. The rejection notices state "CIV-100 #1b Plaintiff Name Omitted" as to both Modern Productions, LLC and Rebecca Nunez. Plaintiff must submit corrected CIV-100s identifying Jennifer Ludden in item 1(b).

The CIV-100 totals do not match the line items or the totals on the JUD-100 forms. On the CIV-100s, Plaintiff lists \$62,500.00 principal, \$7,634.00 interest, \$1,723.60 costs, and \$9,520.00 attorney's fees. These line items total \$81,377.60, not \$83,974.48 as stated on the CIV-100s. The proposed JUD-100s instead list \$7,634.04 interest and a total of \$81,377.64, having done the calculations correctly with an added four cents of interest.

The CIV-100 lists interest of \$7,634.00 while the JUD-100 lists \$7,634.04, and no "interest computation as necessary" is shown anywhere in the package as required by CRC 3.1800(a)(3).

Both the Separation Agreement and the Addendum are between Plaintiff and Modern Productions, LLC only. Rebecca Nunez signed each in her representative capacity as the company's CEO, and the Stipulated Judgment binds only the company. A disclosed agent who signs a contract for a disclosed principal is not personally liable on that contract according to Civ. Code § 2343 unless their actions are wrongful in nature. Rebecca Nunez could only be personally liable for the fraud cause of action, but the package pursues a purely contractual recovery and she in her individual capacity is not a party to the contract. The judgment should be limited to Modern Productions, LLC, unless Plaintiff proves that Nunez is liable for fraud.

Even if the judgment is not limited to Modern Productions, LLC, Plaintiff seeks separate judgments against multiple defendants for the same unpaid settlement amount, so the proposed judgments should include language preventing duplicative recovery. Separate judgments must state: "Any credit on one judgment shall apply to all judgments in this case." The JUD-100s do not include that language and therefore risk duplicative recovery.

CONCLUSION

The OSC is CONTINUED to October 2, 2026, at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package by August 31, 2026 to allow the court time to review the filings.

The Court also sets an Order to Show Cause Re Sanctions Against Plaintiff's Counsel in the Amount of \$250 Pursuant to CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default Judgment for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions.

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.